

Court No. - 6

Case :- WRIT - C No. - 26503 of 2023

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ram Brij Napit

Counsel for Respondent :- CSC,Alok Mishra

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Ram Brij Napit, learned counsel for the petitioner, Mr. Alok Mishra, learned counsel for the respondent nos.4&5 and learned Standing Counsel for the respondents-State.

This writ petition has been filed by the petitioner with a prayer to quash the impugned order dated 19.07.2023 passed by permanent Lok Adalat, Aligarh in P.L.A. Case No.7 of 2022 (Manoj Kumar vs. Executive Engineer) and also quash the recovery citation dated 02.04.2022 passed by respondent no.3; Tehsildar, Tehsil Atrauli, District-Aligarh and a further prayer to direct the respondent no.3 to make an easy installment scheme to pay the petitioner for dues amount.

Learned counsel for the petitioner submits that the electricity bill has wrongly been calculated without looking into the facts as placed by the petitioner in his case as detailed in the writ petition. Without considering which, the impugned order has been passed.

Learned counsel for the respondent nos.4&5 submits that the aforesaid disputed facts cannot be looked into without calling for the counter affidavit.

In view of the above, all the respondents are granted four weeks' time to file counter affidavit. Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List on 27.09.2023.

Till the next date of listing, effect and operation of the impugned orders dated 19.07.2023 and 02.04.2022 shall remain stayed subject to deposition of Rs.1,80,000/- by the petitioner before the respondent no.5 within a period of three weeks from today. If such amount is deposited within the stipulated period, the respondent no.5; The Executive Engineer, Electricity Distribution Division-II, Dakshinanchal Vidyut Vitran Nigam Limited, Lal Diggi Aligarh,

shall take necessary steps to reconnect the electricity of the petitioner.

It is clarified that if the petitioner fails to comply with the aforesaid condition, the interim order granted herein, shall stand vacated and the petitioner shall remain liable to recovery of all amounts under the impugned orders dated 19.07.2023 and 02.04.2022.

Order Date :- 10.8.2023

Jitendra/-

Court No. - 71

Case :- WRIT - C No. - 26503 of 2023

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ram Brij Napit

Counsel for Respondent :- Alok Mishra

Hon'ble Mrs. Manju Rani Chauhan,J.

Ref. Order on Criminal Misc. Modification Application No. 2 of 2023

Heard Sri Ram Brij Napit, learned counsel for the petitioner, Mr. Alok Mishra, learned counsel for the respondent nos. 4 & 5 and learned Standing Counsel for the respondents-State.

The modification application has been moved for modifying the order dated 10.08.2023 passed by this Court wherein a conditional order has been passed that in case the petitioner deposits the amount of Rs. 1,80,000/- within the stipulated period, the respondent no. 5; The Executive Engineer, Electricity Distribution Division-II, Dakshinanchal Vidyut Vitran Nigam Limited, Lal Diggi Aligarh, shall take necessary steps to **reconnect the electricity of the petitioner.**

Learned counsel for the petitioner submits that as per the provision of clause 4.39 of the Electricity Supply Code, 2005, a permanently disconnected connection shall not be reconnected and the consumer shall have to apply for a new connection.

As per the records the electricity connection of the petitioner was terminated with effect from 19.09.2020 and permanent disconnection has taken place vide Office Memorandum dated 28.07.2021 annexed at page 15 of the modification application.

Since there is no provision for re-connection after permanent disconnection, thus the order dated 10.08.2023 is modified to the extent that in case the petitioner deposits the amount of Rs. 1,80,000/- before the respondent no. 5 within a period of **one month** from today and moves an application for new connection, the respondent no. 5; The Executive Engineer, Electricity Distribution Division-II, Dakshinanchal Vidyut Vitran Nigam Limited, Lal Diggi Aligarh, shall take necessary steps to do the needful.

In view of the above, the modification application stands **disposed off**.

Ref: Order on Petition

List accordingly before appropriate Bench.

Matter shall not be treated as tied up/part heard to this Bench.

Interim order shall continue till the next date of listing.

Order Date :- 5.3.2024

Arti